CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Special Commission Meeting
June 01, 2011
5:30 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Wednesday, June 01, 2011 at 5:30 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Dorothy Johnson, Commissioner Timothy Holmes, Commissioner Gail Miller and Mayor Myra L. Taylor. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

2. INVOCATION:

The Invocation was delivered by Mayor Myra L. Taylor.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. RESOLUTION:

According to Florida States Statutes, Mayor Taylor said that the Commission was not in error when voting on the following resolution during the Special Commission Meeting on May 27, 2011 due to a quorum being present and the majority of the quorum voting in favor of the agenda item.

Attorney Geller advised that there is an ordinance on the books which says differently. Section 2-51 reads: "*no ordinance, resolution or motion shall be adopted by the Commission without the affirmative vote of the majority of all the members*". The section incorporated in Florida Statutes is a part of the charter; however, this is an ordinance. To make sure the city's action is not challenged, he recommended that the item is placed back on the agenda.

a. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO CONTRACT WITH C & I CONSTRUCTION AND DESIGN, INC. IN AN AMOUNT NOT TO EXCEED SIX HUNDRED FIFTY TWO THOUSAND ONE HUNDRED

FORTY-THREE DOLLARS AND EIGHT CENTS ($652,143.08), FOR THE REHABILITATION OF PUMP STATIONS 1 AND 2, PAYABLE FROM ACCOUNT NUMBER 35-535630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. Sponsored by C.M.

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Of concern to Vice Mayor Johnson was whether the city had received money from the county for the rehabilitation of pump stations 1 and 2?

Manager Patterson replied, *"not to my knowledge"*.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	No
Mayor Taylor	Yes

5. ADJOURNMENT:

There being no further business to come before the City Commission, the meeting adjourned.

MAYOR

ATTEST:

CITY CLERK